Swift Transportation Co. of Arizona LLC
2200 South 75th Avenue
Phoenix, AZ 85043

Brendan Ngehsi Nforbi
1455 Cat Tail Drive
Stockton, CA 95204

October 5, 2023, 5:09 am
Dear Brendan Ngehsi Nforbi,

This letter is provided to you in compliance with the Fair Credit Reporting Act.

Offers of employment at Swift are contingent upon the successful completion of a background check. This letter serves as notification that we have decided not to employ you or have decided to take other adverse action based in whole or in part on a consumer report received from a consumer reporting agency. Attached is a copy of the consumer report and A Summary of Your Rights Under the Fair Credit Reporting Act.

In evaluating your application, the consumer reporting agencies listed below provided us with consumer reports which, in whole or in part, influenced our employment decision. These consumer reporting agencies played no part in our decision other than providing the consumer report, and the agencies will not be able to provide you with specific reasons for our decision.

Under the Fair Credit Reporting Act, you are entitled to a free copy of a consumer report by contacting the consumer reporting agencies directly, within sixty (60) days of this letter. You also have the right to dispute the completeness or the accuracy of the report to the consumer reporting agencies. The names, addresses and toll-free telephone numbers of the consumer reporting agencies that furnished Swift with the reports are below. Those consumer reporting agencies are:

Asurint
Compliance Dept
PO Box 14730
Cleveland, Ohio 44114
Phone: (800) 906-2034
Email: compliance@asurint.com
Web: https://www.asurint.com/candidates

Tenstreet
120 W. 3rd Street
Tulsa, OK 74103
Phone: (877) 219-9283
Email: support@tenstreet.com
Web: http://www.tenstreet.com/drivers/

DriverIQ
4500 S 129th E Ave, Suite 127
Tulsa, OK 74134
Phone: (855) 881-0716
Email: Disputes@Cisive.com
Web: https://www.cisive.com/dispute-a-background-report

For Pre-Employment Screening Program (PSP) and Clearinghouse:
U.S. Federal Motor Carrier Safety Administration, of the Department of Transportation, ("FMCSA-DOT")
1200 New Jersey Avenue SE
Washington, DC 20590
Phone: (800) 832-5660, TTY (800) 877-8339
https://dataqs.fmcsa.dot.gov/Default.aspx

The Work Number
Equifax Workforce Solutions
Attn: Dispute

3470 Rider Trail South
Earth City, MO 63045
Phone: 1-866-222-5880

Further, you may, upon providing proper identification, request that we provide you with a free copy of the consumer report, as well as A Summary of Your Rights Under the Fair Credit Reporting Act. As noted above, we have already provided you with a copy of your report and A Summary of Your Rights Under the Fair Credit Reporting Act.

Para información en español, visite www.consumerfinance.gov/learnmore o escribe a la Consumer Financial Protection Bureau, 1700 G Street N.W., Washington, DC 20552.

A Summary of Your Rights Under the Fair Credit Reporting Act

The federal Fair Credit Reporting Act (FCRA) promotes the accuracy, fairness, and privacy of information in the files of consumer reporting agencies. There are many types of consumer reporting agencies, including credit bureaus and specialty agencies (such as agencies that sell information about check writing histories, medical records, and rental history records). Here is a summary of your major rights under FCRA. **For more information, including information about additional rights, go to www.consumerfinance.gov/learnmore or write to: Consumer Financial Protection Bureau, 1700 G Street N.W., Washington, DC 20552.**

- **You must be told if information in your file has been used against you.** Anyone who uses a credit report or another type of consumer report to deny your application for credit, insurance, or employment – or to take another adverse action against you – must tell you, and must give you the name, address, and phone number of the agency that provided the information.

- **You have the right to know what is in your file.** You may request and obtain all the information about you in the files of a consumer reporting agency (your "file disclosure"). You will be required to provide proper identification, which may include your Social Security number. In many cases, the disclosure will be free. You are entitled to a free file disclosure if:

    - a person has taken adverse action against you because of information in your credit report;
    - you are the victim of identity theft and place a fraud alert in your file;
    - your file contains inaccurate information as a result of fraud;
    - you are on public assistance;
    - you are unemployed but expect to apply for employment within 60 days.

    In addition, all consumers are entitled to one free disclosure every 12 months upon request from each nationwide credit bureau and from nationwide specialty consumer reporting agencies. See www.consumerfinance.gov/learnmore for additional information.

- **You have the right to ask for a credit score.** Credit scores are numerical summaries of your credit-worthiness based on information from credit bureaus. You may request a credit score from consumer reporting agencies that create scores or distribute scores used in residential real property loans, but you will have to pay for it. In some mortgage transactions, you will receive credit score information for free from the mortgage lender.

- **You have the right to dispute incomplete or inaccurate information.** If you identify information in your file that is incomplete or inaccurate, and report it to the consumer

reporting agency, the agency must investigate unless your dispute is frivolous. See www.consumerfinance.gov/learnmore for an explanation of dispute procedures.

- **Consumer reporting agencies must correct or delete inaccurate, incomplete, or unverifiable information.** Inaccurate, incomplete, or unverifiable information must be removed or corrected, usually within 30 days. However, a consumer reporting agency may continue to report information it has verified as accurate.

- **Consumer reporting agencies may not report outdated negative information.** In most cases, a consumer reporting agency may not report negative information that is more than seven years old, or bankruptcies that are more than 10 years old.

- **Access to your file is limited.** A consumer reporting agency may provide information about you only to people with a valid need – usually to consider an application with a creditor, insurer, employer, landlord, or other business. The FCRA specifies those with a valid need for access.

- **You must give your consent for reports to be provided to employers.** A consumer reporting agency may not give out information about you to your employer, or a potential employer, without your written consent given to the employer. Written consent generally is not required in the trucking industry. For more information, go to www.consumerfinance.gov/learnmore.

- **You may limit "prescreened" offers of credit and insurance you get based on information in your credit report.** Unsolicited "prescreened" offers for credit and insurance must include a toll-free phone number you can call if you choose to remove your name and address form the lists these offers are based on. You may opt out with the nationwide credit bureaus at 1-888-5-OPTOUT (1-888-567-8688).

- The following FCRA right applies with respect to nationwide consumer reporting agencies**:**

  CONSUMERS HAVE THE RIGHT TO OBTAIN A SECURITY FREEZE

  You have a right to place a "security freeze" on your credit report, which will prohibit a consumer reporting agency from releasing information in your credit report without your express authorization. The security freeze is designed to prevent credit, loans, and services from being approved in your name without your consent. However, you should be aware that using a security freeze to take control over who gets access to the personal and financial information in your credit report may delay, interfere with, or prohibit the timely approval of any subsequent request or application you make regarding a new loan, credit, mortgage, or any other account involving the extension of credit.

  As an alternative to a security freeze, you have the right to place an initial or extended fraud alert on your credit file at no cost. An initial fraud alert is a 1-year alert that is

placed on a consumer's credit file. Upon seeing a fraud alert display on a consumer's credit file, a business is required to take steps to verify the consumer's identity before extending new credit. If you are a victim of identity theft, you are entitled to an extended fraud alert, which is a fraud alert lasting 7 years.

A security freeze does not apply to a person or entity, or its affiliates, or collection agencies acting on behalf of the person or entity, with which you have an existing account that requests information in your credit report for the purposes of reviewing or collecting the account. Reviewing the account includes activities related to account maintenance, monitoring, credit line increases, and account upgrades and enhancements.

- **You may seek damages from violators.** If a consumer reporting agency, or, in some cases, a user of consumer reports or a furnisher of information to a consumer reporting agency violates the FCRA, you may be able to sue in state or federal court.

- **Identity theft victims and active duty military personnel have additional rights.** For more information, visit www.consumerfinance.gov/learnmore.

States may enforce the FCRA, and many states have their own consumer reporting laws. In some cases, you may have more rights under state law. For more information, contact your state or local consumer protection agency or your state Attorney General. For information about your federal rights, contact:

TYPE OF BUSINESS:	CONTACT:
1.a. Banks, savings associations, and credit unions with total assets of over $10 billion and their affiliates b. Such affiliates that are not banks, savings associations, or credit unions also should list, in addition to the CFPB:	a. Consumer Financial Protection Bureau 1700 G Street, N.W. Washington, DC 20552 b. Federal Trade Commission Consumer Response Center 600 Pennsylvania Avenue, N.W. Washington, DC 20580 (877) 382-4357
2. To the extent not included in item 1 above: a. National banks, federal savings associations, and federal branches and federal agencies of foreign banks b. State member banks, branches and agencies of foreign banks (other than federal branches, federal agencies, and Insured State Branches of Foreign Banks), commercial lending companies owned or controlled by foreign banks, and organizations operating under section 25 or 25A of the Federal Reserve Act. c. Nonmember Insured Banks, Insured State Branches of Foreign Banks, and insured state savings associations d. Federal Credit Unions	a. Office of the Comptroller of the Currency Customer Assistance Group 1301 McKinney Street, Suite 3450 Houston, TX 77010-9050 b. Federal Reserve Consumer Help Center P.O. Box 1200 Minneapolis, MN 55480 c. FDIC Consumer Response Center 1100 Walnut Street, Box #11 Kansas City, MO 64106 d. National Credit Union Administration Office of Consumer Financial Protection (OCFP) Division of Consumer Compliance Policy and Outreach 1775 Duke Street Alexandria, VA 22314
3. Air carriers	Asst. General Counsel for Aviation Enforcement & Proceedings Aviation Consumer Protection Division Department of Transportation 1200 New Jersey Avenue, S.E. Washington, DC 20590
4. Creditors Subject to the Surface Transportation Board	Office of Proceedings, Surface Transportation Board Department of Transportation 395 E Street, S.W. Washington, DC 20423
5. Creditors Subject to the Packers and Stockyards Act, 1921	Nearest Packers and Stockyards Administration area supervisor
6. Small Business Investment Companies	Associate Deputy Administrator for Capital Access United States Small Business Administration 409 Third Street, S.W., Suite 8200 Washington, DC 20416
7. Brokers and Dealers	Securities and Exchange Commission 100 F Street, N.E. Washington, DC 20549
8. Federal Land Banks, Federal Land Bank Associations, Federal Intermediate Credit Banks, and Production Credit Associations	Farm Credit Administration 1501 Farm Credit Drive McLean, VA 22102-5090
9. Retailers, Finance Companies, and All Other Creditors Not Listed Above	Federal Trade Commission Consumer Response Center 600 Pennsylvania Avenue, N.W. Washington, DC 20580 (877) 382-4357

A Summary of Your Rights
Under Washington's Fair Credit Reporting Act

Under the Washington state Fair Credit Reporting Act (WFCRA or the "Act"), an employer, before taking adverse employment action, is required to provide the applicant or employee with a summary of their rights under the Act with respect to consumer reports or investigative consumer reports obtained for employment purposes from a consumer reporting agency (CRA). This Summary is intended to serve that purpose.

You can find the complete text of the WFCRA, Wash. Rev. Code §§19.182.005—19.182.902, at the Washington State Legislature's web site (http://www.leg.wa.gov). You may have additional rights under the federal Fair Credit Reporting Act, 15 U.S.C. 1681-1681u, which is available on the Internet at the Federal Trade Commission's web site (http://www.ftc.gov).

- **You must consent to the procurement for employment purposes of a report about you.** Before an employer can obtain a report about you from a CRA, the employer must provide you with notice that it will request the report and obtain your consent to that request. A CRA may not give out information about you to your employer, or prospective employer, without your written consent.

- **You must be told if information in your file has been used against you for employment purposes.** An employer who uses information from a consumer or investigative consumer report to take action against you – such as denying an application for employment or terminating employment – must tell you that its decision is based in whole or in part on the report and give you the name, address and phone number of the CRA that provided the report. The employer also must provide you with a description of your rights under the WFCRA and a reasonable opportunity to dispute with the CRA any information on which the employer relied.

- **You can find out what is in your file.** At your request, a CRA must give you the information in your file (except that medical information may be withheld), and a list of everyone who has recently requested your file. These disclosures may be made in person, over the telephone or by any other reasonable method available to the CRA. At your request, any medical information contained in your file will be disclosed to the healthcare provider of your choice.

- **You can dispute inaccurate information with the CRA.** If you tell a CRA that your file contains inaccurate information, the CRA must reinvestigate the disputed items, free of charge, within 30 business days, unless the CRA determines that the dispute is frivolous or irrelevant. The CRA must give you a written report of the investigation. If the CRA's investigation does not resolve the dispute, you may add a brief statement to your file. If an item is deleted or a dispute statement is filed, you may ask that anyone who has recently received your report be notified of the change.

- **Inaccurate information must be corrected or deleted.** A CRA must remove or correct inaccurate or unverified information from its files within 30 business days after you dispute it. If your dispute results in any change to your report, the CRA cannot reinsert into your file a disputed item unless the information source verifies its accuracy and completeness. In addition, the CRA must give you a written notice telling you it has reinserted the item. The notice must include the business name and address.

- **You may seek damages from violators.** If a CRA, a user or (in some cases) a provider of CRA data violates the WFCRA, you may sue them in state court.

A Summary of Your Rights
Under New Jersey's Fair Credit Reporting Act

Under the New Jersey Fair Credit Reporting Act (NJFCRA or the "Act"), an employer, before taking adverse employment action, is required to provide the applicant or employee with a summary of their rights under the Act with respect to consumer reports or investigative consumer reports obtained for employment purposes from a consumer reporting agency (CRA). This Summary is intended to serve that purpose.

You can find the complete text of the NJCRA, N.J. Stat. §§56:11-29 – 56:11041, at the New Jersey State Legislature's web site (http://www.njleg.state.nj.us/). You may have additional rights under the federal Fair Credit Reporting Act, 15 U.S.C. 1681-1681u, which is available on the Internet at the Federal Trade Commission's web site (http://www.ftc.gov).

- **You must consent to the procurement for employment purposes of a report about you.** Before an employer can obtain a report about you from a CRA, the employer must provide you with notice that it will request the report and obtain your consent to that request. A CRA may not give out information about you to your employer, or prospective employer, without your written consent.

- **You must be told if information in your file has been used against you for employment purposes.** An employer who uses information from a consumer or investigative consumer report to take action against you – such as denying an application for employment or terminating employment – must tell you that its decision is based in whole or in part on the report. The employer also must provide you with a description of your rights under the NJCRA and a reasonable opportunity to dispute with the CRA any information on which the employer relied.

- **You can find out what is in your file.** At your request, a CRA must give you the information in your file and a list of everyone who has recently requested your file. These disclosures may be made in person, over the telephone or by any other reasonable method available to the CRA.

- **You can dispute inaccurate information with the CRA.** If you tell a CRA that your file contains inaccurate information, the CRA must reinvestigate the disputed items, free of charge, within 30 days, unless the CRA determines that the dispute is frivolous or irrelevant. The CRA must give you a written report of the investigation. If the CRA's investigation does not resolve the dispute, you may add a brief statement to your file. If an item is deleted or a dispute statement is filed, you may ask that anyone who has recently received your report be notified of the change.

- **Inaccurate information must be corrected or deleted.** A CRA must remove or correct inaccurate or unverified information from its files within 30 days after you dispute it. If your dispute results in any change to your report, the CRA cannot reinsert into your file a disputed item unless the information source verifies its accuracy and completeness. In addition, the CRA must give you a written notice telling you it has reinserted the item. The notice must include the business name and address.

- **You may seek damages from violators.** If a CRA, a user or (in some cases) a provider of CRA data violates the NJFCRA, you may sue them in state court.

(NEW YORK APPLICANTS ONLY)

ARTICLE 23-A, NEW YORK STATE CORRECTION LAW

§ 750. Definitions. For the purposes of this article, the following terms shall have the following meanings:

(1) "Public agency" means the state or any local subdivision thereof, or any state or local department, agency, board or commission.

(2) "Private employer" means any person, company, corporation, labor organization or association which employs ten or more persons.

(3) "Direct relationship" means that the nature of criminal conduct for which the person was convicted has a direct bearing on his fitness or ability to perform one or more of the duties or responsibilities necessarily related to the license, opportunity, or job in question.

(4) "License" means any certificate, license, permit or grant of permission required by the laws of this state, its political subdivisions or instrumentalities as a condition for the lawful practice of any occupation, employment, trade, vocation, business, or profession. Provided, however, that "license" shall not, for the purposes of this article, include any license or permit to own, possess, carry, or fire any explosive, pistol, handgun, rifle, shotgun, or other firearm.

(5) "Employment" means any occupation, vocation or employment, or any form of vocational or educational training. Provided, however, that "employment" shall not, for the purposes of this article, include membership in any law enforcement agency.

§ 751. Applicability. The provisions of this article shall apply to any application by any person for a license or employment at any public or private employer, who has previously been convicted of one or more criminal offenses in this state or in any other jurisdiction, and to any license or employment held by any person whose conviction of one or more criminal offenses in this state or in any other jurisdiction preceded such employment or granting of a license, except where a mandatory forfeiture, disability or bar to employment is imposed by law, and has not been removed by an executive pardon, certificate of relief from disabilities or certificate of good conduct. Nothing in this article shall be construed to affect any right an employer may have with respect to an intentional misrepresentation in connection with an application for employment made by a prospective employee or previously made by a current employee.

§ 752. Unfair discrimination against persons previously convicted of one or more criminal offenses prohibited. No application for any license or employment, and no employment or license held by an individual, to which the provisions of this article are applicable, shall be denied or acted upon adversely by reason of the individual's having been previously convicted of one or more criminal offenses, or by reason of a finding of lack of "good moral character" when such finding is based upon the fact that the individual has previously been convicted of one or more criminal offenses, unless:

(1) there is a direct relationship between one or more of the previous criminal offenses and the specific license or employment sought or held by the individual; or

(2) the issuance or continuation of the license or the granting or continuation of the employment would involve an unreasonable risk to property or to the safety or welfare of specific individuals or the general public.

§ 753. Factors to be considered concerning a previous criminal conviction; presumption.

1. In making a determination pursuant to section seven hundred fifty-two of this chapter, the public agency or private employer shall consider the following factors:

(a) The public policy of this state, as expressed in this act, to encourage the licensure and employment of persons previously convicted of one or more criminal offenses.

(b) The specific duties and responsibilities necessarily related to the license or employment sought or held by the person.

(c) The bearing, if any, the criminal offense or offenses for which the person was previously convicted will have on his fitness or ability to perform one or more such duties or responsibilities.

(d) The time which has elapsed since the occurrence of the criminal offense or offenses.

(e) The age of the person at the time of occurrence of the criminal offense or offenses.

(f) The seriousness of the offense or offenses.

(g) Any information produced by the person, or produced on his behalf, in regard to his rehabilitation and good conduct.

(h) The legitimate interest of the public agency or private employer in protecting property, and the safety and welfare of specific individuals or the general public.

2. In making a determination pursuant to section seven hundred fifty-two of this chapter, the public agency or private employer shall also give consideration to a certificate of relief from disabilities or a certificate of good conduct issued to the applicant, which certificate shall create a presumption of rehabilitation in regard to the offense or offenses specified therein.

§ 754. Written statement upon denial of license or employment. At the request of any person previously convicted of one or more criminal offenses who has been denied a license or employment, a public agency or private employer shall provide, within thirty days of a request, a written statement setting forth the reasons for such denial.

§ 755. Enforcement.

1. In relation to actions by public agencies, the provisions of this article shall be enforceable by a proceeding brought pursuant to article seventy-eight of the civil practice law and rules.

2. In relation to actions by private employers, the provisions of this article shall be enforceable by the division of human rights pursuant to the powers and procedures set forth in article fifteen of the executive law, and, concurrently, by the New York city commission on human rights.

PHILADELPHIA'S FAIR CHANCE HIRING LAW

ENSURING PEOPLE WITH CRIMINAL RECORDS HAVE A FAIR CHANCE TO WORK

Starting March 14, 2016, stronger protections under the City's "Ban the Box" law go into effect.

It is illegal in Philadelphia for employers* to ask about your criminal background during the job application process.

This means that:

Employers cannot ask about your criminal background on job applications or during any job interview.

Employers can run your criminal background check ONLY AFTER a conditional offer of employment is made (final hiring depends on the results of your background check).

- Criminal convictions can be considered *ONLY* if they occurred less than 7 years from when you apply (not counting time of incarceration).
- Arrests that did not lead to conviction cannot be used in employment decisions.

If your background check reveals a conviction, the employer must consider:

- The type of offenses and the time that has passed since it occurred;
- In connection to the job you are applying for; and
- Your job history, character references, and any evidence of rehabilitation.

Employers can reject you based on your criminal record ONLY if you pose an unacceptable risk to the business or to other people.

If you are rejected, the employer must send the decision to you in writing with a copy of the background report used to make the decision.

- You have 10 days to give an explanation of your record, proof that it is wrong, or proof of rehabilitation.

WE CAN HELP!

If you believe an employer has violated the law, you can file a complaint with the PCHR.

Philadelphia Commission on Human Rights
601 Walnut Street, Suite 300 South
Philadelphia, PA 19106
(p) (215) 686-4670 (f) 215-686-4684
Email: pchr@phila.gov
www.phila.gov/humanrelations

*Some employers are exempt.

MASSACHUSETTS CRIMINAL RECORD INFORMATION POLICY

This Policy applies to the Company's operations in Massachusetts.

1. Before asking employment applicants and employees about their criminal records, the Company will provide them with copies of the records if the Company is in possession of the records.

2. Before taking an adverse employment action against an employment applicant or employee based, in whole or in part, on criminal history records, the Company will notify the individual of the potential adverse employment decision. The notice will include the criminal history records, the sources of the records, a copy of this Policy and a copy of information from the state agency about the process for correcting a criminal record.

3. The Company will also provide the individual with an opportunity to dispute the accuracy of the criminal history records by waiting at least five business days before taking final adverse action.

Nothing in this Policy is intended to impose any obligations on the Company that are greater than those required by applicable law.

INFORMATION CONCERNING THE PROCESS IN CORRECTING A CRIMINAL RECORD

1. If you have undergone a background check by an agency that has received a criminal record from the DCJIS, you may ask the agency to provide you with a copy of the criminal record. You may also request a copy of your adult criminal record from the Department of Criminal Justice Information Services, 200 Arlington Street, Suite 2200, Chelsea, MA 02150 or by calling (617) 660-4640 or go to http://www.mass.gov/Eeops/docs/cjis/cori_request_personal.pdf.

2. The DCJIS charges $25.00 fee to provide an individual with a copy of his/her criminal record. You may complete an affidavit of indigency and request that the DCJIS waive the fee.

3. Upon receipt, review the record. If you need assistance in interpreting the entries or dispositions, please review the disposition code and "how to read a criminal record" on the DCJIS website www.mass.gov/cjis/cori/cori_bop.html.

4. The DCJIS does not offer "walk-in" service but you may call our Legal Division at (617) 660-4760 for assistance or the CARI Unit of the Office of the Commissioner of Probation at (617)727-5300.

5. If you believe that a case is opened on your record that should be marked closed, you may contact the Office of the Commissioner of Probation Department at the court where the charges were brought and request that the case(s) be updated.

6. If you believe that a disposition is incorrect, contact the Chief Probation Officer at the court where the charges were brought or the CARI Unit at the Office of the Commissioner of Probation and report that the court incorrectly entered a disposition on your criminal record.

7. If you believe that someone has stolen or improperly used your identity and were arraigned on criminal charges under your name, you may contact the Office of the Commissioner of Probation CARI Unit or the Chief Probation Officer in the court where the charges were brought. For a listing of courthouses and telephone numbers please see www.mass.gov/cjis/cori/cori_codes_court.html.

8. In some situations of identity theft, you may need to contact the DCJIS to arrange to have fingerprints analysis conducted.

9. If there is a warrant currently outstanding against you, you need to appear at the court and ask that the warrant be recalled. You cannot do this over the telephone.

10. If you believe that an employer, volunteer agency, housing agency or municipality has been provided with a criminal record that does not pertain to you, the agency should contact the CORI Unit for assistance at (617) 660-4640.

City & County of San Francisco
Fair Chance Ordinance

Post Where Employees Can Read Easily. Failure to post this notice may result in penalties.

The Fair Chance Ordinance (FCO) regulates when and how San Francisco employers and City contractors may ask about and use arrest and conviction records in hiring decisions. As of October 1, 2018, all employers with 5 or more employees worldwide, and City contractors of any size, must observe the following restrictions:

- **An employer MAY NOT ask about arrests or convictions on a job application.**
- **Only AFTER a conditional offer of employment may an employer conduct a background check, or inquire about convictions or unresolved arrests.**
- **After making a conditional offer of employment, an employer may consider only convictions that are directly related to the job, but may NEVER consider any of the following:**
  - An arrest not leading to a conviction (except for unresolved arrests);
  - Participation in a diversion or deferral of judgment program;
  - A conviction that has been dismissed or expunged;
  - A conviction in the juvenile justice system;
  - A conviction that is more than 7 years old (unless the position supervises or provides services to minors, seniors, or dependent adults);
  - Infractions (except driving record infractions when driving is part of the job); or
  - A conviction for decriminalized conduct, including the non-commercial use and cultivation of cannabis.
- **Before taking any adverse action, such as not hiring an applicant because of a conviction, the employer must:**
  - Notify the applicant or employee and provide a copy of the background check, if any;
  - Give the applicant or employee 7 days to respond with evidence of inaccuracies on the background check or evidence of rehabilitation or other mitigating factors.*
  - Reconsider the action based on evidence the applicant or employee provides.

* **Evidence of rehabilitation** includes satisfying terms of parole or probation, education or training, participating in alcohol or drug treatment programs, letters of recommendation; and age at which the individual was convicted. Mitigating factors are things that contributed to the conviction, such as coercive conditions, physical or emotional abuse, and untreated substance abuse or mental illness.

Preemption. Where federal or state law imposes a criminal history requirement that conflicts with the FCO, the federal or state law will apply.

No Retaliation. An employer may not take an adverse action against an applicant or employee for exercising their rights under the FCO or cooperating with the Office of Labor Standards Enforcement.

Notice Requirement: Employers must provide this notice to applicants and employees prior to conducting a background check, and must post this notice in English, Spanish, Chinese, and any other language spoken by at least 5% of the employees at the workplace or job site.

For more information, or to file a complaint, contact the San Francisco Office of Labor Standards Enforcement at: Hotline: (415) 554-5192 Email: fco@sfgov.org

10/1/2018

舊金山公平機會條例

Post Where Employees Can Read Easily. Failure to post this notice may result in penalties.

公平機會條例（FCO）規範舊金山之雇主與市府承包商在做出雇傭決定時，何時及如何要求和使用拘捕及刑事有罪判決紀錄。自2018年10月1日起，所有於全球各地擁有五位（含）以上員工之雇主，以及任何規模的市府承包商，皆必須遵循下列規範：

- 雇主不得於應徵申請中要求隨附拘捕或刑事有罪判決紀錄。
- 雇主僅得於有條件錄取求職者後，調查其背景或要求刑事有罪判決或仍在調查程序的拘捕紀錄。
- 雇主僅得於有條件錄取求職者後，考量與個人從事該工作之能力直接相關的刑事有罪判決與仍在調查程序之拘捕，但是不得在決定是否雇用求職者時考量下列任何事項：
  - 未導致刑事有罪判決之拘捕（除仍在調查程序中外），
  - 參與轉向或暫緩判決項目，
  - 經撤銷或消除之有罪判決紀錄，
  - 適用青少年司法程序的有罪判決，
  - 已做成七年或更長時間之有罪判決（除該職位係負責監督或提供服務予未成年人、年長者，或無法獨立自主的成年人），
  - 輕微違法案件（以駕駛為業者違反交通案件除外），或
  - 違紀行為之有罪判決，包括非商業性使用及栽種大麻。
- **採取任何不利行為，例如在因有罪判決而不僱用求職者之前，雇主必須：**
  - 通知求職者以及提供背景調查報告之副本（若有），
  - 給予求職者或僱員七天的時間，以提出證明背景調查報告不準確，或已參與更生計畫或具備其他減輕 事由之證據。*
  - 依據求職者或僱員提供之證據，重新檢視該不利行為。

* **更生證據** 包括遵循假釋或緩刑條件、接受教育或培訓、參與酒精或藥物戒癮治療課程、推薦信，以及個人獲刑事有罪時之年齡。減輕事由係指刑事有罪判決參考的事實，例如強制力之程度、身體或精神虐待、未經治療濫用藥物或精神疾病。

優先適用。若聯邦或州法律之犯罪紀錄規範與公平機會條例之規範衝突時，應優先適用聯邦或州法律。

禁止報復行為。雇主不得因求職者或其僱員行使公平機會條例中規範之權利，或配合勞工標準執行辦公室（OLSE）對求職者或其僱員採取報復行為。

通知義務。雇主必須在調查背景之前，提供此通知給求職者或僱員，且必須將此通知以英文、西班牙文、中文及任何其他超過百分之五比例之僱員使用的語言，公佈於工作場所或辦公室中。

欲查詢更多的資訊或提出申訴，請聯絡 舊金山勞工標準執行辦公室
專線： (415) 554-5192 電子郵件信箱： fco@sfgov.orggov.org

Ang Ordinansa ng Makatarungang Pagkakataon ng San Francisco

Post Where Employees Can Read Easily. Failure to post this notice may result in penalties.

Ang Ordinansa ng Makatarungang Pagkakataon (The Fair Chance Ordinance/FCO) ang nangangasiwa kung kailan at paano maaring itanong ng mga may-ari ng negosyo sa San Francisco at mga kontratista ng Lungsod ang tungkol sa talaan sa pagdakip at paghatol ng pagkakasala at paggamit nito sa mga desisyon sa pagtanggap ng kawani. Simula noong Oktubre 1, 2018, lahat ng may-ari ng negosyo na may 5 o higit pang empleyado sa buong mundo, at kontratista ng Lungsod anuman ang laki, ay nararapat na tumupad sa sumusunod na alituntunin:

- **Ang may-ari ng negosyo ay HINDI MAARING magtanong tungkol sa mga pagdakip o mga paghatol sa aplikasyon sa trabaho.**
- **PAGKATAPOS lamang magbigay ng may pasubaling alok ng trabaho maaring magsagawa ng pagsusuri ng kasaysayan, o magtanong tungkol sa mga paghahatol o mga hindi pa nalulutas na pagdakip.**
- **Pagkatapos magbigay ng may pasubaling alok ng trabaho, ang may-ari ng negosyo ay maaring isaalang-alang ang mga paghahatol na direktang may relasyon sa trabaho, ngunit HINDI maaring isaalang-alang anuman sa mga sumusunod:**
  - Ang pagdakip na hindi humantong sa paghahatol (maliban sa mga hindi nalutas na pagdakip);
  - Pakikilahok sa programa ng paglilipat o pagpapaliban ng hatol;
  - Ang paghahatol na inalis o binura;
  - Ang paghahatol sa sistema ng hustisya sa kabataan;
  - Ang paghahatol na lampas sa 7 taon (maliban kung ang posisyon ay namamahala o nagbibigay ng serbisyo sa mga menor de edad, mga matatanda, o mga matatanda na umaasa);
  - Ang mga pagsuway (maliban sa mga talaan ng pagsuway sa pagmamaneho kung ang pagmamaneho ay kasama sa trabaho); o
  - Ang paghahatol sa asal na hindi na itinuturing na labag sa batas, katulad ng hindi komersyal na paggamit at pagpapalago ng marijuana.
- **Bago gumawa ng anumang gawaing salungat, katulad ng hindi pagtanggap sa aplikante dahil sa isang paghahatol, ang may-ari ng negosyo ay kailangang:**
  - Abisuhan ang aplikante o empleyado at bigyan ng kopya ng pagsusuri sa mga kasaysayan, kung mayroon man;
  - Bigyan ang aplikante o empleyado ng 7 araw para sumagot kasama ng katibayang hindi wasto sa pagsusuri sa kasaysayan o katibayan ng pagbabagong buhay o iba pang nagpapagaan ng mga kadahilanan.*
  - Muling isaalang-alang ang aksiyon batay sa katibayan na ibinigay ng aplikante o empleyado.

* **Katibayan ng pagbabagong buhay:** kabilang ang mga maayang mga tuntunin ng paglayang may kondisyon or probasyon, edukasyon o pagsasanay, pakikilahok sa mga programa ng paggamot ng alkohol o droga, mga sulat ng rekomendasyon; at edad ng tao nuong hinatulan. Ang mga nagpapagaan na kadahilanan ay mga bagay na nakaambag sa paghahatol, katulad ng sapilitang mga kondisyon, abusong pisikal o emosyonal , at pag-abuso sa droga na hindi nagamot o sakit sa pag-iisip.

Pagpigil: Kung ang batas na pederal o estado ay nangangailangan ng kriminal na kasaysayan na sumasalungat sa FCO, ang batas na pederal o estado ang iiral.

Walang Paghihiganti: Ang may-ari ng negosyo ay hindi maaring magsagawa ng masamang aksiyon laban sa aplikante o empleyado na gumamit ng kanilang karapatan ayon sa FCO o makipagtulungan sa Opisina ng Pagpapatupad sa mga Pamantayan ng Paggawa (Office of Labor Standards Enforcement).

Kinakailangan na Paunawa: Ang mga may-ari ng negosyo ay kailangang magbigay ng paunawang ito sa mga aplikante o empleyado bago gawin ang pagsusuri sa kasaysayan, at ipaskil itong paunawa sa Ingles, Kastila, Intsik at iba pang wika na ginagamit ng hindi bababa sa 5% ng empleyado sa lugar ng trabaho o puwesto ng trabaho.

Para sa karagdagang kaalaman, o para maghabla ng reklamo, tawagan ang San Francisco Office of Labor Standards Enforcement sa:
Hotline: (415) 554-5192 Email: fco@sfgov.org

Office of Labor Standards Enforcement
(415) 554-6469

For more information
please visit www.sfgov.org/olse

Ordenanza de Oportunidades Equitativas de San Francisco

Post Where Employees Can Read Easily. Failure to post this notice may result in penalties.

La Ordenanza de Oportunidades Equitativas (FCO, por sus siglas en inglés) regula cuándo y cómo los empleadores de San Francisco y los contratistas de la Ciudad pueden preguntar acerca de los expedientes de arrestos y condenas y usarlos al momento de tomar decisiones de contratación. A partir del 1º de octubre de 2018, todos los empleadores con 5 o más empleados en todo el mundo, y los contratistas de la Ciudad de todos los tamaños deben observar las siguientes restricciones:

- **Un empleador NO DEBE preguntar sobre arrestos o condenas en una solicitud de empleo.**
- **Sólo DESPUÉS de hacer una oferta condicional de empleo puede el empleador realizar una verificación de antecedentes, o preguntar acerca de condenas o arrestos sin resolver.**
- **Después de hacer una oferta condicional de empleo, un empleador puede considerar únicamente las condenas que estén directamente relacionadas con el empleo, pero NUNCA puede considerar ninguno de los siguientes:**
  - Un arresto que no haya resultado en una condena, (con la excepción de arrestos no resueltos);
  - Participación en un programa de justicia alternativa o de fallo diferido;
  - Una condena que haya sido desestimada o cancelada;
  - Una condena en el sistema de justicia juvenil;
  - Una condena de más de 7 años de antigüedad (a menos que el puesto supervise o brinde servicios a menores, adultos mayores o adultos dependientes);
  - Infracciones (con la excepción de infracciones de antecedentes de conductor cuando conducir es parte del trabajo); o
  - Una condena por conducta despenalizada, incluidos el uso no comercial y el cultivo de cannabis.
- **Antes de realizar alguna acción adversa, como no contratar a un solicitante debido a una condena, el empleador debe:**
  - Notificar al solicitante o al empleado y proporcionar una copia de la verificación de antecedentes, si corresponde;
  - Dar al solicitante o empleado un plazo de 7 días para responder con evidencia de inexactitudes en la verificación de antecedentes o **evidencia de rehabilitación u otros factores atenuantes.***
  - Reconsiderar la acción basada en la evidencia que provea el solicitante o el empleado.

* **La evidencia de rehabilitación** incluye cumplir con los términos de una libertad probatoria/bajo palabra; recibir educación/capacitación; participación en programas de tratamiento contra el alcohol o drogas; cartas de recomendación; y la edad a la que la persona recibió la condena. Los factores atenuantes incluyen factores que hayan contribuido con la condena, como por ejemplo condiciones de coerción, el maltrato físico o emocional, y el consumo de sustancias controladas o la enfermedad mental sin tratar.

Aplicación preferente. Cuando la ley federal o estatal impone un requisito de antecedentes penales que entra en conflicto con la Ordenanza FCO, prevalecerá la ley federal o estatal.

Sin represalias. Un empleador no debe emprender una acción adversa contra un solicitante o empleado por ejercer sus derechos bajo la Ordenanza FCO o por cooperar con la Oficina de de las Normas Laborales (OLSE).

Requisito de notificación: Los empleadores están obligados a proporcionar este aviso a los solicitantes y empleados antes de realizar una verificación de antecedentes y deben publicar este aviso en inglés, español, chino, y todo idioma hablado por más del 5% de los empleados en el lugar de trabajo o sitio de trabajo.

Para obtener más información o para presentar una queja comuníquese con la: Oficina de las normas laborales (Office of Labor Standards Enforcement: OLSE) de San Francisco por medio de: Línea telefónica de atención directa: (415) 554-5192 Correo electrónico: fco@sfgov.org

CALIFORNIA DISCLOSURE REGARDING BACKGROUND CHECKS DOCUMENT

In connection with your employment or owner-operator (independent contractor) application, Swift Transportation Co. of Arizona LLC ("Company") may order a consumer report or investigative consumer report on you. If you are hired or engaged as an owner-operator (independent contractor), additional consumer reports may be obtained for employment purposes or for the business purpose of evaluating your owner-operator relationship pursuant to your written instructions. Such reports may contain information about your character, general reputation, personal characteristics, and mode of living. The specific nature and scope of the investigation that will be conducted includes: drug and alcohol test results, motor vehicle records, driving records, social security number validation, federal criminal history, state criminal history, public court records, employment history (including names and dates of previous employers, reason for termination of employment, work experience, and accidents), education, licensure, or verification of other information supplied by you. Such reports may be obtained from private and public record sources, including sanctions databases, CDLIS, former employers, public court records, and federal, state, and other government agencies that maintain such records. The companies that may prepare the report on you are:

Asurint
Compliance Dept
PO Box 14730
Cleveland, Ohio 44114
Phone: (800) 906-2034
Email: compliance@asurint.com
Web: https://www.asurint.com/candidates

Tenstreet
120 W. 3rd Street
Tulsa, OK 74103
Phone: (877) 219-9283
Email: support@tenstreet.com
Web: http://www.tenstreet.com/drivers/

DriverIQ
4500 S 129th E Ave, Suite 127
Tulsa, OK 74134
Phone: (855) 881-0716
Email: Disputes@Cisive.com
Web: https://www.cisive.com/dispute-a-background-report

For Pre-Employment Screening Program (PSP) and Clearinghouse:
U.S. Federal Motor Carrier Safety Administration, of the Department of Transportation, ("FMCSA-DOT")
1200 New Jersey Avenue SE
Washington, DC 20590
Phone: (800) 832-5660, TTY (800) 877-8339
https://dataqs.fmcsa.dot.gov/Default.aspx

The Work Number
Equifax Workforce Solutions
Attn: Dispute
3470 Rider Trail South
Earth City, MO 63045
Phone: 1-866-222-5880

SUMMARY OF RIGHTS UNDER CIVIL CODE SECTION 1786.22

a. An investigative consumer reporting agency shall supply files and information required under Section 1786.10 during normal business hours and on reasonable notice.

b. Files maintained on a consumer shall be made available for the consumer's visual inspection, as follows:
   1. In person, if he or she appears in person and furnishes proper identification. A copy of his or her file shall also be available to the consumer for a fee not to exceed the actual costs of duplication services provided.

   2. By certified mail, if he or she makes a written request, with proper identification, for copies to be sent to a specified addressee. Investigative consumer reporting agencies complying with requests for certified mailings under this section shall not be liable for disclosures to third parties caused by mishandling of mail after such mailings leave the investigative consumer reporting agencies.

3. A summary of all information contained in files on a consumer and required to be provided by Section 1786.10 shall be provided by telephone, if the consumer has made a written request, with proper identification for telephone disclosure, and the toll charge, if any, for the telephone call is prepaid by or charged directly to the consumer.

c. The term "proper identification" as used in subdivision (b) shall mean that information generally deemed sufficient to identify a person. Such information includes documents such as a valid driver's license, social security account number, military identification card, and credit cards. Only if the consumer is unable to reasonably identify himself or herself with the information described above, may an investigative consumer reporting agency require additional information concerning the consumer's employment and personal or family history in order to verify his or her identity.

d. The investigative consumer reporting agency shall provide trained personnel to explain to the consumer any information furnished him or her pursuant to Section 1786.10.

e. The investigative consumer reporting agency shall provide a written explanation of any coded information contained in files maintained on a consumer. This written explanation shall be distributed whenever a file is provided to a consumer for visual inspection as required under Section 1786.22.

f. The consumer shall be permitted to be accompanied by one other person of his or her choosing, who shall furnish reasonable identification. An investigative consumer reporting agency may require the consumer to furnish a written statement granting permission to the consumer reporting agency to discuss the consumer's file in such person's presence.